23TRCV00476 23TRCV00476

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Case Number: 23TRCV00476 Hearing Date: August 12, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 12, 2026

Calendar No.

PROCEEDINGS

Alexander
Mora v. American Honda Motor Co., Inc., et al.

23TRCV00476

1.
American Honda
Motor Co., Inc.'s Motion for Summary Adjudication

TENTATIVE RULING

American Honda Motor Co., Inc.'s Motion for Summary
Adjudication is denied.

Background

Plaintiff filed the Complaint on February 17, 2023. Plaintiff alleges the following facts. Plaintiff alleges that his 2020 Honda Accord suffers from defects in the computerized driver assistant safety systems. Plaintiff sets forth a cause of action under the Song-Beverly Act for Breach of Express Warranty as well as a cause of action for Fraudulent Inducement-Concealment.

Motion for Summary
Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2). "If the plaintiff cannot do so, summary judgment should be granted." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendant moves for summary adjudication of the following issues:

“1. Plaintiff’s Second Cause of Action for Fraudulent Inducement – Concealment fails as a matter of law because AHM had no direct dealings with Plaintiff and therefore had no duty to disclose additional information to him.

2. Alternatively, Plaintiff’s Second Cause of Action for Fraudulent Inducement – Concealment fails as a matter of law because Plaintiff cannot prove any damages caused by AHM’s alleged fraudulent concealment.” (Notice of Motion, p. 2, lines 2-7).

“A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” Service by Medallion, Inc. v. Clorox Co. (1996) 44 Cal.App.4th 1807, 1816. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.

The circumstances that could support a duty to disclose are as follows: “(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651.

“Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.” Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157. Plaintiff must state facts which “show how, when, where, to whom, and by what means the representations were tendered.” Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.

“[T]he economic loss rule provides: [W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’ losses. This doctrine hinges on a distinction drawn between transactions involving the sale of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts. The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. Quite simply, the economic loss rule prevent[s] the law of contract and the law of tort from dissolving one into the other.” Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988 (internal citations and quotations omitted).
“[C]onduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law. An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” Erlich v. Menezes (1999) 21 Cal.4th 543, 551 (internal citations and quotations omitted).

With Issue number 1, Defendant argues that it had no direct involvement with Plaintiff or contact with Plaintiff and thus could not have concealed any information from Plaintiff directly i.e, that it did not have a transactional relationship with Plaintiff. (Defendant’s Separate Statement of Facts and Supporting Evidence, 1-3). However, as noted above, “[t]here are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336 (internal quotation omitted).

With respect to the issue of whether the economic loss rule precludes Plaintiff’s cause of action for Fraudulent Inducement, the instant Court elects to follow the persuasive authority set forth in Dhital v. Nissan N. Am., Inc. (2022) 84 Cal.App.5th 828. Based on factual allegations that are remarkably similar to the allegations set forth in the instant action the Court held as follows: “under California law, the economic loss rule does not bar plaintiffs’ claim here for fraudulent inducement by concealment. Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court (Robinson, supra, 34 Cal.4th at pp. 989–990, 22 Cal.Rptr.3d 352, 102 P.3d 268), and plaintiffs allege fraudulent conduct that is independent of Nissan's alleged warranty breaches.” Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843.

Recently, the California Supreme Court, in dicta, reiterated the principle noted above. “[F]raudulent inducement of contract — as the very phrase suggests — is not a context where the ‘traditional separation of tort and contract law’ [citations] obtains. To the contrary, this area of the law traditionally has involved both contract and tort principles and procedures. For example, it has long been the rule that where a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud.” Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41.

Defendant’s own reliance on Rattagan is unavailing. As noted by the Supreme Court in Rattagan: “Rattagan's tort claims are, of course, based on alleged conduct committed during the contractual relationship but purportedly outside the parties' chosen rights and obligations. This court has granted review in two other cases — Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 300 Cal.Rptr.3d 715, review granted Feb. 1, 2023, S277568 and Kia America v. Superior Court (Feb. 3, 2022, D079858) [nonpub. opn.], review granted Apr. 20, 2022, S273170 —

both of which involve claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1791 et seq.). We do not address these issues here." Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41, fn. 12 (emphasis added).

The California Supreme Court's review of Dhital was recently dismissed. Dhital remains citable authority for the pertinent issue regarding the interplay of the economic loss rule and fraudulent inducement claims. The Court elects to follow the authority set forth in Dhital.

Here, Plaintiff alleged sufficient facts that Defendant had exclusive knowledge of the materials and information that were concealed related to the sensing defect, that Defendant actively concealed a material fact, and thus, that Defendant had a duty to disclose the information. (Complaint, ¶¶ 27-83). Plaintiff alleged the existence of a transactional relationship through entering into a warranty contract with Defendant. (Complaint, ¶¶ 4-5). Thus, as to Issue 1, Defendant has not met its burden to provide specific facts to show that the element of duty cannot be established. In addition, in opposition to the motion, Plaintiff presented evidence that Defendant provided express warranties and that Defendant had a transactional relationship with Plaintiff. (Plaintiff's Response to Separate Statement of Fact 3 and Supporting Evidence).

Defendant's motion for summary adjudication of Issue 1 is denied.

As to Issue 2, Defendant argues that there are no damages related to fraudulent inducement essentially stating that all damages are simply contractual damages. However, Plaintiff has met his burden to provide specific facts to show the existence of a triable issue of material fact as to causation of damages. Plaintiff submitted evidence that he specifically testified that he would not have leased the vehicle had he known of the problems with the vehicle. (Deposition, Mora, 181:17-23; Plaintiff's Response to Separate Statement of Facts 3, 5 and Supporting Evidence). This evidence satisfies the element of damages that resulted from the concealment.

Thus, Defendant's motion for summary adjudication of Issue 2 is denied.

Plaintiff is ordered to give notice of this ruling.